

		Attorney Sergio Alejandro Copete to give notice.
11	2025-01458863 <i>Satin vs. HH Law Firm</i>	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Deem Facts Admitted (Continued from 11/6) <u>Motion #1</u> The motion of plaintiffs Ken Satin and Advocate Law Firm for an order compelling defendant HH Law Firm to serve a complete, substantive, Code-compliant, and verified response to the first set of form interrogatories is DENIED, as is the request for a monetary sanction. <u>Motion #2</u> The motion of plaintiffs Ken Satin and Advocate Law Firm, PC, for an order deeming the matters specified in the first set of requests for admissions propounded to defendant HH Law Firm admitted is DENIED, as is their request for a monetary sanction of \$21,245.00. Defendant's request for a monetary sanction is also denied because there is no evidence on which the Court may base that sanction.
12	2021-01226723 <i>Software Freedom Conservancy, Inc. vs. Vizio, Inc.</i>	Motion for Summary Judgment and/or Adjudication Defendant Vizio, Inc.'s Motion for Summary Adjudication is DENIED. Plaintiff Software Freedom Conservancy, Inc.'s Objections to Defendant's Memorandum of Points and Authorities and Separate Statement are overruled. Plaintiff may object to specified evidence, not argument or facts. (See Rules of Court, Rule 3.1354; Code Civ. Proc. § 437c(c & q).) Plaintiff's objections to the Williams Declaration are overruled. Plaintiff's objections to Defendant's exhibits are overruled. Defendant's objections to evidence are also overruled. The Court has reviewed Defendant's Amended Separate Statement of Facts, filed on 7/11/25 under ROA 530, which identifies the issues applicable to each fact. Defendant's separate statement sufficiently identifies the issues for summary adjudication under Rule 3.1350 and the Court will address the merits of the motion. <u>Legal Standard:</u> <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 849 (cleaned up, quoting Code Civ. Proc. § 437c), holds: "In moving for summary judgment, a defendant has met his burden of showing that a cause of action has no merit if he has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The plaintiff may not rely upon the mere allegations or denials of his pleadings to show that a triable issue of material fact exists

but, instead, must set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.”

Code of Civil Procedure section 437c(f)(1) provides, “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.

Summary of Relevant Allegations:

In the First Amended Complaint (FAC), Plaintiff alleges Defendant manufactures smart TVs which use a “SmartCast” system that relies on certain open-source software subject to the GPLv2 (General Public License version 2) and LGPLv2.1 (GNU Lesser General Public License version 2.1), agreements by which users of certain licensed open-source software may use and modify the software but must provide a public copy of the resulting software’s source code. (¶¶ 1, 32-48.) Plaintiff alleges, “users of software licensed under these agreements are free to do with the software what they like, so long as they give their users the same freedom.” (¶ 1.) Plaintiff alleges Defendant has violated the GPLv2 by distributing their smart TVs without providing the source code that would allow users to “modify the library and relink it to produce a modified executable.” (¶ 61.) Plaintiff alleges allowing software developers and users outside of Vizio to access and modify the source code would improve the consumer experience including allowing increased privacy/reduced data collection and disability accessibility, as well as preserving useful features which Vizio determines are obsolete. (¶¶ 111-120.)

Summary of Motion:

Defendant moves for summary adjudication as to the following issue of duty within the first and second causes of action (breach of contract and declaratory relief):

Whether the open-source software licenses in question require Vizio to provide information necessary to install modified versions of the licensed software back onto the Smart TVs with which the software was originally distributed while ensuring the TVs continue to function properly.

Defendant contends the GPLv2 and LGPLv2.1 (sometimes collectively “Agreements”) does not require it to include with the source code “all the information that ‘a person of ordinary skill’ would need to modify

the software and reinstall such modified versions of the GPLv2- and LGPLv2.1-licensed software back onto the same VIZIO Smart TVs while ensuring the TVs continue to function properly.” (Motion, 1:10-14.)

In opposition, Plaintiff cites the following portions of the Agreements:

“Section 3 of the GPLv2 provides, in pertinent part:

‘You may copy and distribute [a GPLv2-licensed] Program (or a work based on it...) in object code or executable form under the terms of Sections 1 and 2 above provided that you also do one of the following:

a) Accompany it with the complete corresponding machine-readable source code...; or,

b) Accompany it with a written offer, valid for at least three years, to give any third party ... a complete machine-readable copy of the corresponding source code....’

(AMF No. 15.) Section 3 of the GPLv2 defines “source code” as follows:

‘The source code for a work means the preferred form of the work for making modifications to it. For an executable work, complete source code means all the source code for all modules it contains, plus any associated interface definition files, plus the scripts used to control compilation and installation of the executable.’”

(Opp. at 5:5-15, emphasis removed.)

In addition to the language of the Agreements, Plaintiff relies on the understanding of representatives of Plaintiff and third-parties involved in the open software community. (Opp. at p. 6.)

Defendant contends a later version of the Agreements which is not applicable to the subject software, GPLv3, contains express reinstallation requirements as to certain products which are not applicable here, thereby evidencing that GPLv2 does not include such a requirement. (Motion, pp. 10-16.) Defendant further contends that Plaintiff’s public statements reflect admissions that GPLv2 did not include a reinstallation requirement which is why such a requirement was subsequently included in version 3.

The Issue Raised in the Motion is Properly Before the Court:

First, Plaintiff contends the issue presented by Defendant is not raised by Plaintiff in Plaintiff’s response to special interrogatory no. 4 which forms the basis for the motion. (Opp. at p. 8-9.) Interrogatory No. 4 stated, “For each computer program identified in SFC’s response to Special Interrogatory

No. 1, state with particularity every piece of technical material and source code that SFC contends VIZIO is obligated to provide upon request to comply with Section 3(a) of the GPLv2.” (Plaintiff’s Ex. 3.)

Plaintiff’s response stated in part, “Under the GPLv2, Propounding Party is obligated to provide all the source code for all of the computer program’s modules, together with associated interface definition files,

the scripts used to control compilation and installation of the executable on the same device on which the computer program was originally distributed. At a minimum, Propounding Party should deliver files such that a person of ordinary skill can compile the source code into a functional executable and install it onto the same device, such that all features of the original program are retained, without undue difficulty.”

Plaintiff argues, “Nowhere in its Interrogatory Response does SFC state that, under the GPLv2, VIZIO needs to provide SFC with information necessary to reinstall modified software back onto VIZIO’s Smart TVs.” (Opp. at 9:1-3.) Therefore, “the alleged duty that is the subject of VIZIO’s Motion is not even mentioned in SFC’s Interrogatory Response and thus is not before the Court. For this reason alone, the Motion fails.” (Opp. at 9:9-10.) Plaintiff further contends that ruling on the merits would not “completely” dispose of the duty identified in its response to interrogatory no. 4 because the motion does not address “whether VIZIO owes a duty to SFC under the GPLv2s to provide information necessary to allow SFC to reinstall unmodified software licensed under the GPLv2s.” (Id. at 9:23-24.) Plaintiff contends Defendant’s alleged duty could “extend to software that is not modified and to ensuring that the software that is licensed under the GPLv2s continues to function properly.” (Id. at 10:13-14.)

Plaintiff’s interrogatory response can be reasonably construed to include the issue raised in the motion. Moreover, Plaintiff has chosen to oppose the motion on the merits rather than concede the issue of duty raised in the motion, indicating Plaintiff alleges the disputed duty applies to Defendant. Moreover, Defendant cites paragraphs 116 and 118 of Plaintiff’s FAC and the testimony of Plaintiff’s witnesses which have asserted the existence of such a duty. (Reply. at pp. 2-3.)

Plaintiff also argues the Court previously denied Plaintiff’s motion for summary adjudication as to Defendant’s duty under the Agreements to produce certain information to Plaintiff on grounds including that the motion did not completely dispose of an issue of Defendant’s duty to provide the source code to third parties. (3/26/24 Minute Order.) “[I]f, under the facts and circumstances of a given case, a court finds it appropriate to determine the existence or nonexistence of a duty in the nature of a contractual obligation, it may properly do so by a ruling on that issue presented by a motion for summary adjudication.” (*Linden Partners v. Wilshire Linden Associates* (1998) 62 Cal.App.4th 508, 519.) In Plaintiff’s motion, Plaintiff sought summary adjudication as to only one of the alternative options available to Defendant for providing source code, which would therefore have not necessarily resolved the issue of Defendant’s breach of the subject provision. Here, unlike in Plaintiff’s motion, Defendant has presented a discrete issue of duty which may be fully resolved via this motion for summary adjudication because there are not alleged alternative measures available to satisfy the duty.

Application of the Agreements:

“When a contract is reduced to writing, the intention of the parties is to be ascertained from the writing alone, if possible; subject, however, to the other provisions of this Title.” (Civ. Code § 1639.)

“The proper interpretation of a contract is disputable if the contract is susceptible of more than one reasonable interpretation, that is, if the contract is ambiguous. An ambiguity may appear on the face of a contract, or extrinsic evidence may reveal a latent ambiguity. A court determining whether a contract is ambiguous must first consider extrinsic evidence offered to prove the parties' mutual intention. If the court determines that the contract is reasonably susceptible of an interpretation supported by extrinsic evidence, the court must admit that evidence for purposes of interpreting the contract. A court cannot determine based on only the four corners of a document, without provisionally considering any extrinsic evidence offered by the parties, that the meaning of the document is clear and unambiguous. Instead, a court must provisionally consider extrinsic evidence offered by the parties in the manner we have stated.” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 114 [cleaned up].)

Here, the Agreements require Defendant to include access to the “machine-readable” source code with their smart TVs, with “source code” defined to include “the preferred form of the work for making modifications to it. For an [executable work or library], complete source code means all the source code for all modules it contains, plus any associated interface definition files, plus the scripts used to control compilation and installation of the [executable or library].” (Defendant’s Ex. 3, pp. 25-27.)

Plaintiff contends the phrases, “machine-readable” and “scripts used to control compilation and installation” support their assertion in response to special interrogatory no. 4 that Defendant should “deliver files such that a person of ordinary skill can compile the source code into a functional executable and install it onto the same device, such that all features of the original program are retained, without undue difficulty.”

Both sides cite statements and testimony by representatives of the parties and third-party individuals with expertise in the field who have differing views about whether the Agreements should be construed to include a reinstallation requirement. (See Defendant’s Exs. 7, 8, 9, 10, and 11 discussed at pp. 3-6 and 13-6 of Motion; Plaintiff’s Decls. of Kuhn, Waid, and Kooyman discussed at pp. 15-18 of Opposition.)

The Court finds the plain language of the Agreements is not conclusive at this stage as to whether the Agreements include a reinstallation requirement. The above definitions do not expressly state whether Defendant must allow for “reinstallation.” However, the use of language including “machine-readable,” and “control compilation or installation” at minimum creates ambiguity as to whether such a requirement was contemplated in the Agreements, which ambiguity cannot be resolved at this stage. The conflicting extrinsic evidence presented by the parties does not conclusively resolve the ambiguity, rather it further

		demonstrates a triable issue of fact as to this issue of duty. Therefore, the motion is denied.
13	2023-01343055 <i>Surdyk's Decorating vs. McAllister</i>	Motion – Other CONTINUED
14	2025-01487775 <i>Yun vs. Lee</i>	Order to Show Cause re: Preliminary Injunction The Order to Show Cause Re: Preliminary Injunction is CONTINUED to _____. Plaintiff is ORDERED to properly serve Defendants with the summons and complaint and the order to show cause. “A party requesting a preliminary injunction may give notice of the request to the opposing or responding party either by serving a noticed motion under Code of Civil Procedure section 1005 or by obtaining and serving an order to show cause (OSC). An OSC must be used when a temporary restraining order (TRO) is sought, or if the party against whom the preliminary injunction is sought has not appeared in the action. If the responding party has not appeared, the OSC must be served in the same manner as a summons and complaint.” (Cal. Rules of Court, rule 3.1150(a).) Plaintiff has not properly served Defendants with the Complaint. The proofs of service of summons show Plaintiff’s process server served the summons and complaint on a receptionist at Chung & Reynolds Law Firm. “A summons may be served on a person not otherwise specified in this article by delivering a copy of the summons and of the complaint to such person or to a person authorized by him to receive service of process.” (Code Civ. Proc., § 416.90.) The plaintiff bears the burden of proof to show the person served was authorized to by the defendant to accept service of process. (<i>Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1163.) A personal attorney or an attorney representing the party in another lawsuit is not presumed to be an authorized person. (<i>Zirbes v. Stratton</i> (1986) 187 Cal.App.3d 1407, 1416-1417.) Plaintiff has presented no evidence Chung & Reynolds was authorized to accept service for this lawsuit by either Defendant. Thus, the Court lacks jurisdiction to enter an injunction against Defendants.
15	2024-01439438 <i>Chou vs. Mercedes-Benz USA, LLC</i>	Demurrer to Amended Complaint (Continued from 11/6) Defendant Mercedes-Benz USA, LLC’s Demurrer is CONTINUED to _____. Plaintiff may file an additional opposition no later than 9 court days before the new hearing date and Defendant may file an additional reply no later than 5 court days before. Defendant’s request for judicial notice is granted. (See <i>Ascherman v. General Reinsurance Corp</i> (1986) 183 Cal.App.3d 307, 310-311 [courts